ROSEMARY SAMPILI
versus
ROBSON SAMPILI
and
MASTER OF HIGH COURT
and
THE CITY OF HARARE N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE, 5 March & 25 June 2026

Opposed -Condonation

B. Venge, for the Applicant
M. Nyatsoma, for the 1st Respondent
No appearance for 2nd and 3rd Respondents

MAXWELL J: This is an application for condonation of the late application to re-open the administration of Estate Late Joseph Sampili DR 2187/97 and nullification of the Will therein. Applicant stated that she was in an unregistered customary law union with the deceased. Three children were born in the union. Applicant separated with the deceased in 1980 after a misunderstanding. She claims to have reconciled with the deceased prior to the deceased's death. She alleged that first Respondent registered the deceased's estate without notifying her and other beneficiaries. Stand Number 7218 Glen View, Harare, which was left by the deceased was transferred on the basis of a Will. First Respondent attempted to sell the property in 2022. An objection was registered with the City of Harare. Applicant proceeded to register the deceased's estate under DR 638/22. She subsequently fell ill and did not administer the estate. In 2004 she was served with a notice of eviction from the property.

Applicant requested for an edict meeting through her legal practitioners. On 6 February 2025 the parties attended an edict meeting where they were advised that the estate had been administered to finality under DR 2185/97. Applicant alleged that the delay in making this application was due to illness and the lack of knowledge that the estate had been registered and finalized. She stated that she filed an application for the re-opening of the administration of the Estate Late Joseph Sampili DR 2187/97 under case number HCHF

2069/25. The application was dismissed as it had been filed out of time. On the prospects of success, Applicant submitted that she has great prospects as the property in question was a matrimonial property which should have been bequeathed to her. She claimed to be the surviving spouse of the deceased. She claimed to have indirectly contributed to the acquisition of the property.

First Respondent opposed the application. He challenged Applicant's *locus standi* and indicated that Applicant divorced the deceased in 1977 and married the father of his half-sister and half-brother. He disputed that there was reconciliation between his late father and the Applicant after the divorce. He indicated that his late father married one Eunice Deke and had three children. He denied that he registered the estate without informing other beneficiaries. He disputed that Applicant ever occupied Stand 7218 Glen View, Harare and stated that the property was registered in his name in terms of the Administration of Estates Act [*Chapter 6:01*]. He indicated that he was not aware of the Applicant's illness.

First Respondent submitted that Applicant was in willful default. He pointed out that Applicant was narrating events from 2022 but is not telling the court what happened from June 1997 when the deceased died to 2022 when the notice to vacate was served on Fungisai Sampili. He further submitted that Applicant, assuming she was a surviving spouse, would not succeed to challenge the deceased's Will as the law of testamentary disposition in Zimbabwe recognizes the doctrine of freedom of testation and does not oblige a testator to bequeath his or her property to the surviving spouse.

In answer Applicant insisted that she was the surviving spouse of the late Joseph Sampili. She averred that she has the legal capacity to challenge the validity of the Will and make an application for the re-opening of the administration of the Estate Late Joseph Sampili DR 2187/97. She pointed out that Eunice Deke pre-deceased the late Joseph Sampili. She stated that she has been occupying the property, Stand number 7218 Glen View, Harare and the transfer from the deceased's name was done without her knowledge. She stated that the beneficiaries were never called nor notified of the Will reading.

LOCUS STANDI

Locus standi is the right or ability of a party to bring a legal action to a court of law or to appear in court. See *Apostolic Faith Mission of Portland Oregon (Southern Africa Hq*) v *Rev Richard Sibanda & 3 Ors* HH 463/15. The question of whether the Applicant has *locus standi* to bring this applications is central to the whole matter. Applicant claims to be the

surviving spouse of the late Joseph Sampili. In her founding affidavit she confirms that she separated from the deceased in 1980 and deceased married another woman with whom he sired four children. She states that she later on reconciled with the deceased before his death. First Respondent disputes that there was reconciliation between the Applicant and the deceased. He pointed out that Applicant divorced the deceased in 1977 and married the father of her two children. He further averred that the death certificate indicates that the deceased was married by error as he went with his mother and uncle to apply for it.

Applicant relies on the fact that the death certificate indicates that the deceased was married at the time of his death. In my view, that does not assist her as the death certificate does not show to who the deceased was married. First Respondent stated that he went with his mother and uncle to obtain the death certificate. Applicant did not dispute that. There is therefore a probability that the marital status was in reference to the first Respondent's mother. In heads of argument, first Respondent stated that Applicant deliberately decided not to furnish the court with the dates of births of Mavis and Ephraim as that would expose the fact that Applicant had remarried at the time of passing of the late Joseph Sampili. This damning averment did not provoke any response from Applicant as Applicant's counsel was content to abide by papers filed of record on the date of the hearing. Applicant referred to separation from the deceased in 1980 yet first Respondent averred that Applicant and deceased divorced in 1977. The Applicant did not comment on the disparity of the dates in her answering affidavit. Neither did she confirm or refute the allegation that she went on to marry another man and gave birth to Mavis and Ephraim.

In the absence of a declaration that Applicant is the surviving spouse of the deceased Joseph Sampili, her *locus standi* is not established on the papers. Accordingly, it is not necessary to consider any other issue in this application.

The following order is appropriate.

The application be and is hereby struck off the roll with costs.

MAXWELL J:……

Tawanda Law Practice, Applicant's Legal Practitioners
J Mambara & Partners, First Respondent's Legal Practitioners